

| #   | Case Name                                                                      | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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| 50. | Bullene v. City of Laguna Beach<br>2026-01570286                               | <p>Defendant Victoria Hawlish's Demurrer to the Complaint and Motion to Strike are CONTINUED December 7, 2026, at 2:00 p.m. in this Department to be heard at the same time as another demurrer and motion to strike directed at the same complaint.</p> <p>Prior to filing the Demurer and Motion to Strike, Moving Defendant failed to engage in a good faith meet and confer. (Code Civ. Proc. § 430.41(a).) The parties are ordered to meet and confer in person, by telephone or by video conference no later than 15 days after this order. Moving Defendant's counsel is to initiate the conference and Plaintiff is to cooperate with the scheduling of that call.</p> <p>No later than October 30, 2026, Defendant Hawlish shall file a declaration concerning the court-ordered meet and confer addressing whether any issues have been resolved and/or what issues remain.</p> <p>Further, Defendant Hawlish is admonished to comply with California Rules of Court and the Code of Civil Procedure concerning service of process on a self-represented party.</p> <p>The case management conference is continued to December 7, 2026 at 2:00 p.m. in this Department.</p> <p>Defendant Hawlish shall give notice of this ruling.</p> |
| 51. | Plascencia v. Ridgeway Park East Homeowners Association, Inc.<br>2026-01542868 | <p>Defendant Ridgeway Park East Homeowners Association, Inc.'s ("HOA") Demurrer to the First Amended Complaint ("FAC") is SUSTAINED.</p> <p>Defendant HOA's Request for Judicial Notice is GRANTED.</p> <p>Defendant HOA demurs to the First Amended Complaint on the grounds (1) Plaintiffs failed to file an ADR certificate and (2) Plaintiffs failed to state facts sufficient to state a cause of action against the HOA.</p> <p>Defendant HOA is correct as it relates to the Third and Fourth causes of action ("COA")—an ADR certificate is required. The negligent repair and maintenance claim (3<sup>rd</sup> COA) seeks damages in "excess of the jurisdiction of this court." (FAC ¶ 42.) The unlimited jurisdictional limit by definition exceeds the small claims limit. Therefore, an ADR certificate is required. (See Civ. Code § 5930).</p>                                                                                                                                                                                                                                                                                                                                                                                   |

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|     |                                                                               | <p>Similarly, in the 4<sup>th</sup> COA, Plaintiff seeks an order from this court requiring the HOA to provide Plaintiffs with the opportunity to inspect the records of the HOA. The FAC pleads a claim for injunctive relief, requiring an ADR certificate. (See Civ. Code § 5930).</p> <p>The demurrer is SUSTAINED as to the 3<sup>rd</sup> and 4<sup>th</sup> COAs.</p> <p>The court disagrees with Defendant HOA's analysis that Civ. Code § 5930 requires an ADR certificate for the 1<sup>st</sup> and 2<sup>nd</sup> COAs. It does not apply to an assessment dispute. (Civ. Code § 5930, subd. (d).) Section 5930 states without qualification or reference to Section 5658 that the prelitigation ADR requirement does not apply to an assessment dispute. Moreover, Section 5658 states that the owner "may" pursue dispute resolution, but does not require it even for small claims actions.</p> <p>However, Defendant HOA is correct that the Plaintiffs' claims for wrongful assessment and negligence do not exist as standalone claims. Assessment disputes are governed by the Davis-Stirling Act or brought as breach of contract or breach of governing documents. (Civ. Code § 5658.) Plaintiffs cannot circumvent the statutory scheme by asserting causes of action that seek tort damages without any legal basis.</p> <p>In opposition, Plaintiffs do not dispute this argument.</p> <p>Accordingly, the demurrer to the first and second causes of action is SUSTAINED for failure to state a cause of action.</p> <p>Plaintiffs have 30 days leave to amend.</p> <p>The case management conference is continued to March 15, 2027 at 9:00 a.m. in Department C28.</p> <p>Defendant HOA shall give notice of this ruling.</p> |
| 52. | <p>Slater v. Walt Disney Parks and Resorts, US, Inc.</p> <p>2025-01500476</p> | <p>Defendant Luke Stedman's demurrer to Terri Jo Slater's fourth cause of action for intentional infliction of emotional distress ("IIED") and 5<sup>th</sup> cause of action for negligent infliction of emotional distress ("NIED") is SUSTAINED with ten days leave to amend.</p> <p><b>Analysis</b></p> <p>The Fair Employment and Housing Act (FEHA), codified at Cal. Gov't Code § 12900 et seq., prohibits age discrimination in employment. However, the legislature did not intend to place individual supervisory employees at risk of personal liability</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |